



CORE West, Inc.

PRE-CONSTRUCTION INSURANCE REQUIREMENTS INSTRUCTION SHEET

Advance Planning: Nye County School District Tonopah Elementary School Replacement

1 Ray Tennant Drive
Tonopah, NV 89049

Prior to starting Work on the project site, Subcontractor shall provide, subject to the approval of Contractor, certificates and endorsements evidencing the insurance required by the Contract Documents, and as set forth within the "Attachment "E" – Insurance Conditions" of the Subcontract Agreement and/or Work Authorization ("Agreement"), but in no event shall the coverages and limits be less than those specified within this Insurance Instruction Sheet. Any acceptance of Certificates of Insurance or endorsements by Contractor, or failure of Subcontractor to provide Certificates of Insurance or endorsements, shall in no way limit or relieve Subcontractor of its duties and responsibilities under its Agreement. All Insurance policies shall remain in full force and effect throughout the contract duration.

CORE is now using a third-party vendor, JONES, to assist with tracking certificates of insurance. You will receive an email from **compliance@gaisb.com** containing a link through which you must upload your certificate of insurance, with required endorsements, for consideration. **DO NOT EMAIL COIs TO compliance@gaisb.com, ONLY UPLOAD COIs VIA THE LINK WHICH YOU WILL RECEIVE.** You will receive additional communications from this email address for various compliance issues such as expiration notices, deficiencies or "Gaps" in coverage, as well as a notification when you are compliant.

Should you have any questions, please direct them to:

compliance@gaisb.com

Please ensure that the certificates include the Project Name, CORE Project Number and all additional insureds as required by the Contract Documents. Endorsements, if not blankets, must also include the names of all additional insureds. Your submission will otherwise be rejected.

Required Additional Insured(s) listed below:

- CORE West, Inc. (Contractor)
- Nye County School District (NCSD) (Owner) and all others as required by the Prime Contract

The Certificate Holder will be:

CORE West, Inc.
7150 Cascade Valley Court
Las Vegas, NV 89128

INSURANCE REQUIREMENTS:

1. Workers' Compensation:

Coverage A. Statutory Benefits, in required statutory limits for the state in which the work is to be performed.

Coverage B. Employer's Liability.

Bodily Injury by accident	\$1,000,000 each accident
Bodily Injury by disease	\$1,000,000 policy limit
Bodily Injury by disease	\$1,000,000 each employee

Coverage must include a Waiver of Subrogation endorsement in favor of the Additional Insureds.

Where applicable, U.S. Longshore and Harbor Workers Compensation Act Endorsement shall be attached to the policy.

2. Commercial Auto Coverage:

Auto Liability limits of not less than \$1,000,000 each accident, combined Bodily Injury and Property Damage Liability insurance. Certificate to reflect coverage for "Any Auto" or "All Owned, Hired and Non-Owned".

If the Contract Documents require Subcontractor to remove and haul hazardous waste from the Project site, or if the Project involves such similar environmental exposure, pollution liability coverage equivalent to that provided under the ISO Pollution Liability-Broadened Coverage for Covered Autos Endorsement shall be provided, and the Motor Carrier Act Endorsement (MCS 90) shall be attached.

An endorsement naming, to the fullest extent permitted by law, Contractor, Owner, and any other parties in interest as Additional Insured(s) under the coverage specified under Commercial Auto Coverage.

An endorsement stating: "Such coverage as is afforded by this policy for the benefit of the additional insured(s) is primary and any other coverage maintained by such additional insured(s) shall be non-contributing with the coverage provided under this policy."

Coverage must include a Waiver of Subrogation endorsement in favor of the Additional Insureds.

3. Commercial General Liability:

Limits must meet the minimums set forth below, or the policy limit, whichever is greater:

Per Occurrence	\$1,000,000
Personal Injury/Advertising Injury	\$1,000,000
Products/Completed Operations Aggregate	\$2,000,000
General Aggregate	\$2,000,000
(other than Products/Completed Operations)	

Excess or Umbrella policies may be used to meet the above limit requirements.

Coverage must include a Waiver of Subrogation endorsement in favor of the Additional Insureds.

Both policy forms must include:

- a) Premises and Operations coverage with no explosion, collapse or underground damage (XCU) exclusions.
- b) Products and Completed Operations coverage shall be maintained from the Substantial Completion date of the project through the expiration of the statute of repose for the jurisdiction in which the project is located.
- c) Blanket contractual coverage for the indemnity/hold harmless agreements assumed in this Subcontract and in the Prime Contract. Any Employee Exclusion will be deleted.
- d) Broad Form Property Damage coverage, including completed operations or its equivalent.
- e) An endorsement naming, to the fullest extent permitted by law Contractor, Owner and any other parties in interest as Additional Insured(s) under the coverage specified under Comprehensive General Liability or Commercial General Liability. The endorsement shall be on both ISO forms CG 20 10 07 04 and CG 20 37 07 04, or their equivalent. Any form that does not grant additional insured status for both the ongoing operations and products/completed operations coverages IS NOT ACCEPTABLE. Additional Insured endorsements must be submitted with the certificate of insurance.
- f) An endorsement stating: "Such coverage as is afforded by this policy for the benefit of the additional insured(s) is primary and any other coverage maintained by such additional insured(s) shall be non-contributing with the coverage provided under this policy."
- g) Coverage on an "Occurrence" form. **"Claims Made"** and **"Modified Occurrence"** forms are not acceptable.
- h) Coverage to include general aggregate limits on a "per project" basis.

4. Excess Liability:

Subcontractor shall obtain the following umbrella or excess liability insurance (must cover over WC, GL, and Auto) in addition to the above liability amounts with limits, both per occurrence and in the aggregate, not less than:

Crane Subcontractors	\$10,000,000
Piling Subcontractors	\$5,000,000
Electrical Subcontractors	\$5,000,000
HVAC Subcontractors	\$5,000,000
Masonry/Concrete/Pre-cast Subcontractors	\$5,000,000
Elevator Subcontractors	\$5,000,000
Site Utility Subcontractors	\$5,000,000
Plumbing Subcontractors	\$5,000,000
Curtain Wall Subcontractors	\$5,000,000
Roofing Subcontractors	\$5,000,000
Structural Steel Subcontractors	\$5,000,000
Fire Protection Subcontractors	\$5,000,000
All Other Subcontractors	\$2,000,000

5. Professional Liability:

\$1,000,000 per claim and in the aggregate

If Subcontractor has design or engineering responsibility in the execution of the Subcontract obligations, Subcontractor shall provide Professional Liability coverage with limited contractual liability coverage in favor of Contractor and a deductible of no greater than \$50,000 per claim. Any self-insured retention (SIR) must be clearly identified on the certificate of insurance and is subject to Contractor's approval. This insurance shall be maintained for not less than the duration of the project and five (5) years following completion of

construction. Retroactive date of such coverage must be on or before the date Subcontractor (and its consultants/sub-subcontractors) began providing professional services for the project.

6. Contractor's Pollution Liability:

Not less than: \$5,000,000 per occurrence (or per claim, if Claims-Made) and in the aggregate for those handling or transporting hazardous materials
\$1,000,000 per occurrence (or per claim, if Claims-Made) and in the aggregate for all others.

If the scope of the Subcontractor's Work involves the handling, disposing of, or installing any state or federally regulated hazardous materials or Subcontractors performing mechanical, plumbing, HVAC, drywall, insulation, excavation, trenching, or any or containment of water in any manner or form whatsoever, including vapor or moisture barriers, roofing, flashing, windows, curtain wall, plaster or stucco (exterior only), EIFS, any building enclosure system or the protection from water intrusion, Contractor's Pollution Liability insurance covering bodily injury and property damage arising from sudden or gradual pollution incidents in connection with the Subcontractor's Work and those of its subtiers. Such insurance shall provide for legal costs, defense costs, clean-up and remediation costs, transportation of pollutants on and off the project site, non-owned disposal site liability. There shall be no exclusions for fungus, mold, silica, asbestos, or lead. If using a Claims Made policy, retroactive date shall be on or before the date Subcontractor begins its Work. An endorsement naming the additional insureds listed above shall be provided with a waiver of subrogation in favor of the Additional Insureds. Coverage shall be maintained including additional insured coverage for 5 years following Substantial Completion of the Project.

7. Unmanned Aircraft Vehicles/Drone Liability Coverage:

Not less than: \$2,000,000 per occurrence, both Bodily Injury/Property Damage and Personal & Advertising Injury

If Subcontractor utilizes Unmanned Aircraft Vehicles (UAVs)/Drones, Subcontractor shall provide Aviation Liability Insurance covering the use of UAVs/Drones. Such insurance shall cover bodily injury, property damage and Personal & Advertising Injury. Subcontractor shall comply with all FAA regulations relating to commercial operation of UAVs/Drones. Subcontractor shall notify Contractor of its intention to utilize these UAVs/Drones.

8. Other Requirements:

- a) All policies shall be endorsed to provide Contractor a thirty (30) day notice prior to any insurance policy, represented therein, being cancelled or modified.
- b) All policies must be written by insurance companies whose rating, in the most recent Best's Rating Guide, is not less than A- VII. All coverage forms must be acceptable to Contractor.
- c) Certificates of Insurance with the required endorsements (as stated above) evidencing the required coverages must be delivered to the Contractor prior to commencement of any Subcontract Work. Failure of Contractor to demand such certificate or other evidence of full compliance with these insurance requirements or failure of Contractor to identify a deficiency from evidence that is provided shall not be construed as a waiver of Subcontractor's obligation to maintain such insurance. Contractor shall have the right, but not the obligation, to prohibit Subcontractor or any of its subcontractors from entering the Project site until such certificates or other evidence that insurance has been placed in complete compliance with these requirements is received and approved by Contractor.

- d) Subcontractor shall be responsible to satisfy any deductible or self-insured retention with respect to any of the coverages required by this Subcontract.
- e) Contractor reserves the right, in its sole discretion, to require higher limits of liability coverage if, in Contractor's opinion, operations by or on behalf of Subcontractor create higher than normal hazards and, to require Subcontractor to name additional parties in interest to be Additional Insureds. In the event Subcontractor is requested to provide such additional limits of liability coverage, Subcontractor will be allowed to submit a Change Order Request so that it may be compensated for any such change.
- f) In the event that rental of equipment is undertaken to complete and/or perform the Subcontract Work, Subcontractor agrees that it shall be solely responsible for such rental equipment. Such responsibility shall include, but not be limited to, theft, fire, vandalism and use by unauthorized persons.
- g) If the Work involves the design, construction, fabrication, preparation, installation, application, maintenance or repair (including remodeling, service, correction, or replacement) of any "exterior insulation finish system" (EIFS) or any part thereof, or substantially similar system, the Subcontractor's CGL policy shall not include exclusions for such work. Alternatively, "EIFS" coverage may be provided under a separate policy.
- h) In the event that the insurance coverages provided by the Subcontractor pursuant to the Contract Documents exceed the minimums set forth in the Contract Documents, then in that event, Contractor shall have the benefit of all such excess coverages.
- i) Subcontractor shall require any entity it hires to provide any services under the Contract Documents to provide evidence of insurance equivalent to the requirements of Subcontractor under this Attachment. When employees of the Subcontractor are provided via a Professional Employment Organization (PEO) or Employee Leasing Company, such entity shall provide a certificate of insurance (COI) evidencing their Commercial General Liability and Workers' Compensation/Employer's Liability coverages. Workers' Compensation policy shall include a waiver of subrogation endorsement in the favor of the Additional Insureds. Commercial General Liability and Employer's Liability limits must meet the minimum limits set forth above in Sections 1, 3 and 4.

9. Property Insurance/Builder's Risk:

- A. Contractor and Subcontractor waive all rights against each other and against Owner, Architect/Engineer, separate contractors, and all other subcontractors for damages caused by fire or other perils covered by Builder's Risk or any other property insurance, except such rights as they may have to the proceeds of such insurance. Subcontractor shall require its subcontractors to provide similar waivers.
- B. Subcontractor will be responsible for Builder's Risk/Property deductibles when such claims for loss or damage arise out of the negligent acts or willful misconduct of Subcontractor, or anyone for whose acts they are liable. Deductible responsibility will not extend to claims incurred as a result of flood, earthquake, Named Storm, or Severe Storm, as defined by the builder's risk policy.
- C. Any coverage provided under Builder's Risk policies maintained by Owner or Contractor shall exclude Subcontractor's tools and equipment, including trailers, excavators, scaffolds and forms.